25STCV12880 25STCV12880

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Case Number: 25STCV12880 Hearing Date: August 18, 2026 Dept: 515

NATURE OF PROCEEDINGS:

Hearing on Motion for Attorney Fees

Plaintiffs' Motion for Attorney Fees is granted in the reduced amount of $17,797.46.

BACKGROUND

Plaintiffs Vadim Sarkisyan and Sergey Mirzoyans (Plaintiffs) filed this action against General Motors, LLC (Defendant), alleging that a 2024 GMC Hummer EV they leased for personal use manifested defects that Defendant's authorized facilities failed to repair.

The causes of action are: (1) Breach of Implied Warranty of Merchantability under the Song-Beverly Consumer Warranty Act; and (2) Breach of Express Warranty under the Song-Beverly Consumer Warranty Act.

On June 6, 2026, the Court dismissed the action under Code of Civil Procedure section 664.6 pursuant to the parties' settlement.

Plaintiffs filed a Motion for Attorney Fees and Costs. Defendant filed an Opposition.

LEGAL STANDARD

A prevailing buyer under the Song-Beverly Consumer Warranty Act “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).)

The calculation begins with the lodestar, “a careful compilation of the time spent and reasonable hourly compensation of each attorney” who worked on the case. (Serrano v. Priest (1977) 20 Cal.3d 25, 48.) The court may adjust that figure for “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

A prevailing buyer bears the burden of “showing that the fees incurred were ‘allowable,’ were ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’” (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.) Where the buyer does not carry that burden, “the court must take this into account and award attorney fees in a lesser amount.” (Ibid.) “‘[P]adding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (Ketchum, supra, 24 Cal.4th at p. 1132.) A party challenging a fee request as excessive must “point to the specific items challenged, with a sufficient argument and citations to the evidence,” and “[g]eneral arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.)

ANALYSIS

I. Prevailing Party

Defendant served an offer to compromise under Code of Civil Procedure section 998 on January 22, 2026, and Plaintiffs accepted it four days later. (Barry Decl., ¶ 8, Ex. 1; Kay Decl., ¶¶ 13-14.) The offer states that Defendant “will agree that Plaintiffs are the prevailing party,” and that Plaintiffs’ “attorney’s fees, expenses and costs that have been reasonably incurred pursuant to California Civil Code § 1794(d) may be determined by the Court via noticed motion.” (Barry Decl., Ex. 1, ¶ 2.) Defendant does not dispute that Plaintiffs are the prevailing party.

II. Hourly Rates

“In determining hourly rates, the court must look to the ‘prevailing market rates in the relevant community.’ [Citation.] … In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees. [Citation.] The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate. [Citation.] ‘Affidavits of the plaintiffs’ attorney and other attorneys regarding prevailing fees in the community, and rate determinations in other cases, particularly those setting a rate for the plaintiffs’ attorney, are satisfactory evidence of the prevailing market rate.’ [Citation.]’” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

Because lemon law cases are typically brought on a contingency basis, the Court considers that factor in determining the reasonable hourly rate. (See Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 395 [“The contingency adjustment may be made at the lodestar phase of the court’s calculation or by applying a multiplier to the noncontingency lodestar calculation (but not both).”].)

Plaintiffs seek rates of $695 for David N. Barry, $600 for Kristopher Storti and Pauliana N. Lara, $425 for Julie Bernardi, $375 for C. Richard Lara, and $350 for Christopher Derhartounian. (Mot., p. 14.) Barry has practiced for 24 years, 21 of them in consumer law, and identifies eighteen matters in which courts approved the $695 rate between December 2025 and June 2026. (Barry Decl., ¶¶ 18, 22-39.) Barry also reports the rates charged by fourteen practitioners in consumer law, which range from $525 to $750. (Barry Decl., ¶ 21.) A page of a national survey submitted with the Motion gives an average rate of $507 for attorneys with 21 to 25 years of practice in consumer law. (Barry Decl., Ex. 3.)

Defendant’s conclusion asks the Court to reduce counsel’s hourly rate, but Defendant identifies no rate as excessive and offers no evidence of the rates prevailing in this community. (Opp., p. 15.)

The Court finds the requested rates reasonable.

III. Hours Reasonably Incurred

Plaintiffs' counsel recorded 52.2 hours, wrote off 1.5 hours and $737.00 as non-billable, and seeks 50.7 hours totaling $26,013.50. (Barry Decl., ¶ 11, Ex. 2.) Defendant challenges nine categories of that time and identifies the entries in each by date, timekeeper, and amount. (Opp., pp. 7-11.) Plaintiffs observe that Defendant produced no defense billing records, but a party opposing a fee request need not do so; the Court measures the hours claimed against the work the record shows was performed. Plaintiffs argue further that a court should not deny or reduce a fee claim without first allowing the claimant to cure a defect in its showing. (Reply, p. 3:11-13.) Gonzalez v. Santa Clara County Dept. of Social Services (2017) 9 Cal.App.5th 162, 175, on which Plaintiffs rely, reversed the outright denial of fees. The denial there rested on an authentication defect the opposing party never raised and the trial court surfaced after the hearing. (Id. at pp. 173-174.) The opinion says a defect of that kind may support a reduction even where it cannot support a denial. (Id. at p. 171.) Defendant objected here, by category and in writing, and Plaintiffs answered in the Reply.

Defendant frames the Opposition around Assembly Bill 1755. (Opp., p. 4.) That legislation added the disclosure, deposition, and mediation procedures now codified at Code of Civil Procedure sections 871.20 through 871.28, and it left the fee standard alone. Section 1794, subdivision (d) is unchanged, and nothing in the new chapter caps a prevailing buyer's recovery or displaces the lodestar. However, the streamlined procedure bears on how much time a reasonable attorney needs to perform the tasks the statute prescribes, and the Court takes that into account for each entry.

A. Withdrawn Time

Plaintiffs' billing records include 8.4 hours at $695 to review, oppose, and appear on an anticipated motion to tax costs, and 2.0 hours at $695 to travel to and from the hearing on this Motion. (Barry Decl., Ex. 2.) Defendant filed no motion to tax costs, and Plaintiffs withdraw both blocks. (Reply, p. 2:4-8, p. 8:8-10.) The Reply gives the travel withdrawal as $1,320.00 in its introduction and as $1,390.00 in its argument. The reduced figure Plaintiffs calculate is $1,390.00, which corresponds to 2.0 hours at Barry's rate. (Reply, p. 2:7-8, p. 6:12-13, p. 9:5.) The two withdrawals remove 10.4 hours and $7,228.00, leaving 40.3 hours and $18,785.50 in dispute.

B. Pre-Engagement Time

Defendant asks the Court to strike 1.2 hours billed by Richard Lara on April 4, 8, and 11, 2025, before counsel drafted a representation agreement, on the ground that evaluating a prospective client is a cost of doing business absorbed as overhead. (Opp., p. 7; Barry Decl., Ex. 2.) The entries record two telephone conferences with the prospective clients and a review of the repair orders together with research into technical service bulletins and recalls. (Barry Decl., Ex. 2.) The pleading filed three weeks later identifies four recalls by number and thirteen conditions presented for repair. (Complaint, ¶ 10.) Civil Code section 1794, subdivision (d) allows fees for time expended "in connection with the commencement" of the action, and investigating whether a warranty claim exists is how an action is commenced. The Court declines to strike this time. The three entries total $450.00; Defendant reports $475.00.

C. Protective Order

Defendant seeks to strike 1.8 hours spent reviewing its motion for entry of a protective order and the papers filed alongside it, on the ground that Plaintiffs' refusal to stipulate made the motion necessary. (Opp., pp. 7-8; Kay Decl., ¶ 9.) That is not a ground for disallowance. Defendant chose to file the motion, and a party served with a noticed motion may read it. Defendant then withdrew the motion, so the Court never determined whether the refusal to stipulate was unreasonable, and this Motion is not the occasion to decide it. The 1.8 hours comprise seven entries reviewing the motion and the papers filed with it, the reply brief, and the notice of withdrawal. (Barry Decl., Ex. 2.) That is not excessive, and Defendant's objection to this time is overruled.

D. Initial Disclosures

Defendant would cut in half the 1.0 hour Richard Lara billed to draft Plaintiffs' initial disclosures, because Code of Civil Procedure section 871.26 prescribes what the disclosures must contain and Plaintiffs produced only 37 pages. (Opp., p. 8.) The answers are case-specific. They give the vehicle's mileage as 8,907, name the primary driver, and disclose an aftermarket window tint. They also index seven categories of documents against eleven prescribed questions. (Barry Reply Decl., ¶ 3, Ex. 1.) An hour to gather that information from two clients, verify it, and assemble the production is reasonable, and the Court allows the entry in full.

E. Deposition Preparation

Defendant challenges the 1.5 hours Richard Lara billed on October 6, 2025, to review the file before deposing Defendant's person most knowledgeable, and would reduce it to 0.5 hours because the deposition was confined to statutorily prescribed topics. (Opp., p. 8.) Counsel took that deposition the next day and billed 2.1 hours for it. (Barry Decl., Ex. 2.) The file by then held Defendant's initial disclosures and document production, reviewed on August 13, 2025, along with the repair history behind four recalls and thirteen reported conditions. (Ibid.; Complaint, ¶ 10.) Ninety minutes to prepare to examine a witness on that material is reasonable, and the Court makes no reduction.

F. Client Communications

Defendant asks the Court to halve the 3.7 hours Barry billed for communications with Plaintiffs "re case status," and to compensate the remainder at the rate of Richard Lara, who handled the file. (Opp., p. 9.) Counsel must keep a client reasonably informed, and counsel need not disclose the content of a privileged communication to justify the time spent on it. Thirteen entries over five months, most of them between 0.2 and 0.4 hours, are not, on their face, excessive.

On October 28, 2025, January 27, 2026, and March 16, 2026, Barry billed 0.2 hours to "[r]eview email correspondence from clients re case status" and a second 0.2 hours the same day to "[r]espond to email correspondence from clients re case status." (Barry Decl., Ex. 2.)

Twenty-four minutes for one email exchange is duplicative. The Court disallows the second entry in each pair, 0.6 hours and $417.00. Separately, on March 13, 2026, seven weeks after Plaintiffs accepted the offer and with no work left but this Motion, Barry billed 0.4 hours for a telephonic conference on case status, one of four case-status entries on three days that month. (Ibid.) The Court disallows the March 13, 2026 entry, 0.4 hours and $278.00, for a total reduction in this category of 1.0 hour and $695.00.

G. Clerical Tasks

Defendant would disallow 2.1 hours billed on administrative and case-management tasks, chiefly reviewing and preparing court notices. (Opp., pp. 9-10.) “[P]urely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them.” (Missouri v. Jenkins (1989) 491 U.S. 274, 288, fn. 10.) That principle does not cover most of what Defendant challenges here. Reviewing a notice of case assignment, a notice of case management conference, and a notice of appearance calls for a lawyer’s judgment about what each paper obliges the party to do. Increments of 0.1 hour for that work are not padding. Preparing a case management statement and a notice of posting jury fees is legal work as well. (Barry Decl., Ex. 2.)

On June 15, 2026, Pauliana Lara billed 0.2 hours at $600 to “[d]raft memo for file re: case status.” (Barry Decl., Ex. 2.) A memorandum written to the file after a hearing that counsel separately billed for is office record-keeping, and counsel wrote off an identically described entry by Bernardi dated October 24, 2025. (Ibid.) The Court disallows 0.2 hours and $120.00 and allows the balance of this category.

H. Travel Time

Defendant objects to 1.6 hours billed by Pauliana Lara at $600 to travel to and from the courthouse for the June 15, 2026 order to show cause re: dismissal, on the ground that travel is a cost of doing business. (Opp., pp. 8-9.)

The round trip itself was not reasonably incurred. Attending that hearing was Pauliana Lara’s only substantive involvement in the case. (Barry Decl., ¶ 10(e).) The case had settled five months earlier; the hearing was an order to show cause re dismissal, and a civil litigant who gives notice may appear remotely. (Code Civ. Proc., § 367.75, subd. (a).) Billing $960.00 at a senior rate to drive to and from a half-hour matter that counsel could have handled from the office was not reasonable. The Court disallows the travel, 1.6 hours, and $960.00.

I. Fee Motion

Defendant would allow three hours for this Motion and disallow the rest, because the Motion repeats fee motions Plaintiffs' counsel has filed against Defendant in other cases. (Opp., p. 10; Kay Decl., ¶ 15, Ex. G.) Time spent establishing and defending a fee claim is compensable. (Serrano v. Unruh (1982) 32 Cal.3d 621, 639; Ketchum, supra, 24 Cal.4th at p. 1133.)

Ten hours remain in this category after the travel Plaintiffs withdrew: 2.0 hours to draft the Motion, 1.0 hour to prepare the memorandum of costs, 0.1 hour for the proposed order, 0.9 hours by three attorneys to review the supporting declarations, 2.0 hours to review the Opposition, 2.0 hours to draft the Reply, and 2.0 hours to prepare for and attend this hearing. (Barry Decl., Ex. 2.)

Defendant objects that 8.0 hours in this category had not been incurred when the Motion was filed. (Opp., p. 10.) Two of those are the travel time Plaintiffs have withdrawn. Six remain: 2.0 hours to review the Opposition, 2.0 hours to draft the Reply, 1.0 hour to review the file before this hearing, and 1.0 hour to appear.

Defendant does not cite, and the Court is not aware of, any authority precluding the estimation of anticipated fees. On the contrary, in fee motions, the initial papers often estimate the anticipated fees for work on the reply brief. (See, e.g., Minser v. Collect Access, LLC (2023) 92 Cal.App.5th 781, 796; Frym v. 601 Main Street LLC (2022) 82 Cal.App.5th 613, 617.) Doing so comports with "[t]he general rule of motion practice … that new evidence is not permitted with reply papers" as a matter of due process. (Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537.) Section 1794, subdivision (d) allows fees "based on actual time expended," which fixes how a fee is measured rather than when a prevailing buyer may present the claim. Plaintiffs have since filed the Reply, and counsel appears today. The Court declines to strike the estimated time. (See Menezes v. McDaniel (2019) 44 Cal.App.5th 340, 349 [rejecting the argument that anticipated fees and costs are too speculative to award].)

Plaintiffs filed fourteen pages of argument supported by a forty-paragraph declaration and four exhibits; Defendant answered with fifteen pages and eight exhibits, and Plaintiffs replied. That counsel has made similar arguments before does not mean the work took no time, and two hours to draft the Motion, two to draft the Reply, and one to appear are reasonable.

Ten hours is nonetheless more than these papers required. On August 17, 2026, Barry billed 1.0 hour at $695 to review the file in preparation for this hearing, which repeats the review counsel performed in drafting the Reply and which an attorney who has carried the matter since April 2025 did not need. (Barry Decl., Ex. 2.) Richard Lara billed 2.0 hours to read a fifteen-page opposition and its exhibits, and one hour is enough. (Ibid.) The Court disallows 1.0 hour and $695.00 for the file review and 1.0 hour and $375.00 for half the review of the Opposition, a reduction of 2.0 hours and $1,070.00, and allows the remaining eight hours.

J. Lodestar

The Court's reductions total 4.8 hours and $2,845.00: 1.0 hour and $695.00 for duplicative and excessive client communications; 0.2 hours and $120.00 for the memorandum to the file; 1.6 hours and $960.00 for travel; and 2.0 hours and $1,070.00 for duplicative time on this Motion. Subtracted from the $18,785.50 that remained after Plaintiffs' withdrawals, the lodestar is $15,940.50 for 35.5 hours.

IV. Multiplier

A trial court may award a lodestar multiplier under Civil Code section 1794, subdivision (d). (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 818-819, 821.) Relevant multiplier factors include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Ketchum, supra, 24 Cal.4th at p. 1132.) "[W]hen determining the appropriate enhancement, a trial court should not consider these factors to the extent they are already encompassed within the lodestar.” (Id. at p. 1138.)

This case is not unusually complex and is typical of the cases that Plaintiffs’ counsel handles. Moreover, the contingent nature of the work is already reflected in the hourly rate. Therefore, the Court declines to award a multiplier.

V. Costs

Plaintiffs claim $2,485.80 by verified memorandum of costs served June 18, 2026, and ask the Court to award that sum as part of this Motion. (Barry Decl., Ex. 4; Mot., p. 13.) Defendant objects to five items in its Opposition.

A. Timeliness

Plaintiffs argue that the objections come too late. A notice of motion to strike or tax costs must be served and filed 15 days after service of the memorandum; once that time passes, the clerk enters the costs on the judgment. (Cal. Rules of Court, rule 3.1700(b)(1), (b)(4).) Defendant did not use that procedure. Plaintiffs, however, placed the same $2,485.80 before the Court by including it in this Motion and asking the Court to exercise its discretion over items not enumerated by statute. (Mot., p. 13; Code Civ. Proc., § 1033.5, subd. (c)(4).) Having asked the Court to award the costs on motion, Plaintiffs cannot complain that Defendant answered on motion. The objections are properly before the Court, and each item put in issue by a proper objection must be shown by the party claiming it. (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.)

B. Jury Fees

Defendant objects to the $150.00 jury fee because no jury was ever empaneled. (Opp., p. 13.) Filing, motion, and jury fees are allowable as a matter of right. (Code Civ. Proc., § 1033.5, subd. (a)(1).) The subdivision states no condition. A party who posts jury fees to preserve the right to a jury does not forfeit the cost by settling before trial. An invoice in the record shows the fee was advanced on September 25, 2025. (Barry Reply Decl., Ex. 2.) The Court overrules the objection.

C. Court
Reporter

Defendant challenges $550.00 in court reporter fees as an estimate for the hearing on this Motion, not a fee incurred. (Opp., p. 13.) Defendant is correct. Costs are allowable “if incurred, whether or not paid.” (Code Civ. Proc., § 1033.5, subd. (c)(1).) The worksheet names no reporter and gives no date, and the invoices Plaintiffs produced with the Reply include no reporter. (Barry Decl., Ex. 4; Barry Reply Decl., Ex. 2.) The Court strikes $550.00.

D. Electronic
Filing

Defendant argues that the $146.56 claimed in electronic filing fees is unexplained. (Opp., pp. 13-14.) Fees for electronic filing are allowable where a court requires electronic filing, and this Court requires it of represented parties in unlimited civil cases. (Code Civ. Proc., § 1033.5, subd. (a)(14); Cal. Rules of Court, rule 2.253(b); L.A. Super. Ct., First Amended General Order No. 2019-GEN-014-00.) Plaintiffs produced nine electronic filing service provider invoices with the Reply, each itemizing a court electronic filing charge, an electronic filing manager fee, and a payment processing fee. (Barry Reply Decl., Ex. 2.) Those charges total $164.96, more than the amount claimed. Defendant’s objection is overruled.

E. Mileage
and Parking

Defendant objects to $78.84 in mileage and parking because “other” is not a statutory category and because travel is overhead, and asks that the item be stricken in its entirety. (Opp., pp. 13-14.) The worksheet divides the item evenly: $39.42 for the June 15, 2026 order to show cause and $39.42 for the hearing on this Motion. (Barry Decl., Ex. 4, worksheet p. 4.) The second half has not been incurred. (Code Civ. Proc., § 1033.5, subd. (c)(1).) The first half was incurred, but mileage and parking are not enumerated in section 1033.5, subdivision (a), and an item the statute does not mention is allowed only in the Court’s discretion. (Code Civ. Proc., § 1033.5, subd. (c)(4).) The Court has disallowed the time counsel billed for that same round trip because counsel could have appeared remotely, and the mileage and parking for the trip are disallowed for the same reason. The Court strikes $78.84.

F. Mediation

Defendant contends that the $325.00 mediation charge is unsubstantiated. (Opp., p. 14.) Plaintiffs produced no invoice for this item, although the Reply offered its exhibit as "all the invoices in Plaintiffs' possession." (Barry Reply Decl., ¶ 4, Ex. 2.) The mediation itself is not in doubt. Defendant's own declaration states that the parties mediated on November 7, 2025, that section 871.26 obliged them to mediate, and that statute divides the mediator's fee equally between the sides. (Kay Decl., ¶ 12; Code Civ. Proc., § 871.26, subd. (d).) Counsel's contemporaneous entries record preparation for and attendance at the mediation. The worksheet's December 10, 2025 date is consistent with a charge invoiced after the session. (Barry Decl., Ex. 2, Ex. 4, worksheet p. 4.) A $325.00 half-share is reasonable on its face, and the Court allows it.

Costs are awarded in the amount of $1,856.96.

CONCLUSION

Plaintiffs' Motion for Attorney Fees is granted in the reduced amount of $17,797.46, consisting of $15,940.50 in attorney fees and $1,856.96 in costs.